

STATE OF NEW YORK

4071--A

2025-2026 Regular Sessions

IN SENATE

January 31, 2025

Introduced by Sens. MAY, BRISPORT, CLEARE, COMRIE, FAHY, FERNANDEZ, HARCKHAM, KAVANAGH, KRUEGER, LIU, MAYER, MURRAY, MYRIE, PALUMBO, RAMOS, ROLISON, SALAZAR, SERRANO, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Corporations, Authorities and Commissions -- recommitted to the Committee on Corporations, Authorities and Commissions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to including stormwater in the definition of sewage for purposes of certain water, sewer, and water and sewer authorities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 12 and 14 of section 1045-b of the public
2 authorities law, as added by chapter 513 of the laws of 1984, are
3 amended to read as follows:

4 12. "Sewage" shall mean the water-carried human or animal wastes from
5 residences, buildings, industrial establishments or other places,
6 together with such groundwater infiltration, stormwater, and surface
7 water as may be present. The admixture with sewage of industrial or
8 other waste also shall be considered "sewage" within the meaning of this
9 title.

10 14. "Sewerage system" shall mean the [~~sewage~~] system or systems for
11 the collection, conveyance, pumping, treatment neutralizing, storage and
12 disposal [~~system or systems~~] of sewage or stormwater in the possession
13 of, or under the jurisdiction and control of, the city or the water
14 board, including all additions, increases, enlargements, extensions or
15 improvements thereto.

16 § 2. Subdivisions 17, 18, 19, 20 and 21 of section 1045-b of the
17 public authorities law are renumbered subdivisions 18, 19, 20, 21 and 22
18 and a new subdivision 17 is added to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 17. "Stormwater" shall mean a flow of water occurring on the ground or
2 other surface from rain or meltwater that is not absorbed by the soil or
3 other surface.

4 § 3. Subdivisions 19 and 21 of section 1115-a of the public authori-
5 ties law, as amended by chapter 403 of the laws of 1987, are amended to
6 read as follows:

7 19. "Sewage" shall mean the water-carried human or animal wastes from
8 residences, buildings, industrial establishments or other places,
9 together with such groundwater infiltration, stormwater, and surface
10 water as may be present. The admixture with sewage of industrial or
11 other waste also shall be considered "sewage" within the meaning of this
12 title.

13 21. "Sewerage system" shall mean the [~~sewage~~] system or systems for
14 the collection, conveyance, pumping, treatment, neutralizing, storage
15 and disposal [~~system or systems~~] of sewage or stormwater owned by, in
16 the possession of, or under the jurisdiction and control of the city or
17 the water board, including all additions, increases, enlargements,
18 extensions or improvements thereto.

19 § 4. Subdivisions 24, 25 and 26 of section 1115-a of the public
20 authorities law are renumbered subdivisions 25, 26 and 27 and a new
21 subdivision 24 is added to read as follows:

22 24. "Stormwater" shall mean a flow of water occurring on the ground or
23 other surface from rain or meltwater that is not absorbed by the soil or
24 other surface.

25 § 5. Subdivision 17 of section 1122 of the public authorities law, as
26 added by chapter 595 of the laws of 1991, is amended to read as follows:

27 17. "Sewerage" means the water-carried human or animal wastes from
28 residences, buildings, industrial establishments or other places,
29 together with such groundwater infiltration, stormwater, and surface
30 water as may be present. The admixture with sewage of industrial or
31 other wastes also shall be considered "sewage" within the meaning of
32 this title.

33 § 6. Subdivisions 22, 23, 24, 25, 26, 27, 28 and 29 of section 1122 of
34 the public authorities law, as added by chapter 595 of the laws of 1991,
35 are renumbered subdivisions 23, 24, 25, 26, 27, 28, 29 and 30 and a new
36 subdivision 22 is added to read as follows:

37 22. "Stormwater" means a flow of water occurring on the ground or
38 other surface from rain or meltwater that is not absorbed by the soil or
39 other surface.

40 § 7. Subdivision 18 of section 1122 of the public authorities law, as
41 added by chapter 592 of the laws of 1991, is amended to read as follows:

42 18. "Sewage" means the water-carried human or animal wastes from resi-
43 dences, buildings, industrial establishments or other places, together
44 with such groundwater infiltration, stormwater, and surface water as may
45 be present. The admixture with sewage of industrial or other waste also
46 shall be considered "sewage" within the meaning of this title.

47 § 8. Subdivisions 22, 23 and 24 of section 1122 of the public authori-
48 ties law, as added by chapter 592 of the laws of 1991, are renumbered
49 subdivisions 23, 24, and 25 and a new subdivision 22 is added to read as
50 follows:

51 22. "Stormwater" means a flow of water occurring on the ground or
52 other surface from rain or meltwater that is not absorbed by the soil or
53 other surface.

54 § 9. Subdivisions 16, 17 and 18 of section 1147-a of the public
55 authorities law are renumbered subdivisions 17, 18 and 19 and a new
56 subdivision 16 is added to read as follows:

1 16. "Sewage" shall mean the water-carried human or animal wastes from
2 residences, buildings, industrial establishments or other places,
3 together with such groundwater infiltration, stormwater, and surface
4 water as may be present. The admixture with sewage of industrial or
5 other waste also shall be considered "sewage" within the meaning of this
6 title.

7 § 10. Subdivisions 19 and 20 of section 1147-a of the public authori-
8 ties law are renumbered subdivisions 21 and 22 and a new subdivision 20
9 is added to read as follows:

10 20. "Stormwater" shall mean a flow of water occurring on the ground or
11 other surface from rain or meltwater that is not absorbed by the soil or
12 other surface.

13 § 11. Subdivisions 24 and 25 of section 1176 of the public authorities
14 law are renumbered subdivisions 25 and 26 and a new subdivision 24 is
15 added to read as follows:

16 24. The term "stormwater" shall mean a flow of water occurring on the
17 ground or other surface from rain or meltwater that is not absorbed by
18 the soil or other surface.

19 § 12. Subdivisions 12 and 14 of section 1196-b of the public authori-
20 ties law, as added by chapter 510 of the laws of 1984, are amended to
21 read as follows:

22 12. "Sewage" shall mean the water-carried human or animal wastes from
23 residences, buildings, industrial establishments or other places,
24 together with such groundwater infiltration, stormwater, and surface
25 water as may be present. The admixture with sewage of industrial or
26 other waste also shall be considered "sewage" within the meaning of this
27 title.

28 14. "Sewerage system" shall mean the [~~sewage~~] system or systems for
29 the collection, conveyance, pumping, treatment neutralizing, storage and
30 disposal [~~system or systems~~] of sewage or stormwater in the possession
31 of, or under the jurisdiction and control of, a municipality, including
32 all additions, increases, enlargements, extensions or improvements ther-
33 eto.

34 § 13. Subdivisions 17, 18, 19, 20 and 21 of section 1196-b of the
35 public authorities law are renumbered subdivisions 18, 19, 20, 21 and 22
36 and a new subdivision 17 is added to read as follows:

37 17. "Stormwater" shall mean a flow of water occurring on the ground or
38 other surface from rain or meltwater that is not absorbed by the soil or
39 other surface.

40 § 14. Subdivision 19 of section 1199-a of the public authorities law,
41 as added by chapter 723 of the laws of 1986, is amended to read as
42 follows:

43 19. "Sewage" means the water-carried human or animal wastes from resi-
44 dences, buildings, industrial establishments or other places, together
45 with such groundwater infiltration, stormwater, and surface water as may
46 be present. The admixture with sewage of industrial or other waste also
47 shall be considered "sewage" within the meaning of this title.

48 § 15. Subdivisions 23, 24 and 25 of section 1199-a of the public
49 authorities law are renumbered subdivisions 24, 25 and 26 and a new
50 subdivision 23 is added to read as follows:

51 23. "Stormwater" means a flow of water occurring on the ground or
52 other surface from rain or meltwater that is not absorbed by the soil or
53 other surface.

54 § 16. Subdivision 18 of section 1199-bb of the public authorities law,
55 as added by chapter 501 of the laws of 1990, is amended to read as
56 follows:

18. "Sewage" means the water-carried human or animal wastes from residences, buildings, industrial establishments or other places, together with such groundwater infiltration, stormwater, and surface water as may be present. The admixture with sewage of industrial or other waste also shall be considered "sewage" within the meaning of this title.

§ 17. Subdivisions 22, 23, 24, 25, 26, 27 and 28 of section 1199-bb of the public authorities law, subdivisions 22, 23, 24, 25, 26 and 28 as renumbered by chapter 501 of the laws of 1990, are renumbered subdivisions 23, 24, 25, 26, 27, 28 and 29 and a new subdivision 22 is added to read as follows:

22. "Stormwater" means a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 18. Subdivision 18 of section 1199-bbbb of the public authorities law, as added by chapter 195 of the laws of 1995, is amended to read as follows:

18. "Sewage" means the water-carried human or animal wastes from residences, buildings, industrial establishments or other places, together with such groundwater infiltration, stormwater, and surface water as may be present. The admixture with sewage of industrial or other waste also shall be considered "sewage" within the meaning of this title.

§ 19. Subdivisions 22, 23, 24, 25, 26, 27 and 28 of section 1199-bbbb of the public authorities law, as added by chapter 195 of the laws of 1995, are renumbered subdivisions 23, 24, 25, 26, 27, 28 and 29 and a new subdivision 22 is added to read as follows:

22. "Stormwater" means a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 20. Subdivision 18 of section 1199-aaaa of the public authorities law, as added by chapter 411 of the laws of 1995, is amended to read as follows:

18. "Sewage" means the water-carried human or animal wastes from residences, buildings, industrial establishments or other places, together with such groundwater infiltration, stormwater, and surface water as may be present. The admixture with sewage of industrial or other waste also shall be considered "sewage" within the meaning of this title.

§ 21. Subdivisions 22, 23, 24, 25, 26, 27 and 28 of section 1199-aaaa of the public authorities law, as added by chapter 411 of the laws of 1995, are renumbered subdivisions 23, 24, 25, 26, 27, 28 and 29 and a new subdivision 22 is added to read as follows:

22. "Stormwater" means a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 22. Subdivision 2 of section 1230-g of the public authorities law is amended by adding a new paragraph (h) to read as follows:

(h) "Stormwater" means a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 23. Subdivision 21 of section 1232-b of the public authorities law, as added by chapter 685 of the laws of 2003, is amended to read as follows:

21. "Sewage" means the water-carried human or animal wastes from residences, buildings, industrial establishments or other places, together with such ground water infiltration, stormwater, and surface water as may be present. The admixture of sewage with industrial or other waste also shall be considered "sewage" within the meaning of this title.

§ 24. Subdivisions 26 and 27 of section 1232-b of the public authorities law are renumbered subdivisions 27 and 28 and a new subdivision 26 is added to read as follows:

26. "Stormwater" means a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 25. Subdivision 16 of section 1281 of the public authorities law, as amended by chapter 744 of the laws of 1970, is amended to read as follows:

16. "Sewage" shall mean the water-carried human or animal wastes from residences, buildings, industrial establishments or other places, together with such ground water infiltration, stormwater, and surface water as may be present. The admixture with sewage of industrial waste or other waste shall also be considered "sewage" within the meaning of this title.

§ 26. Section 1281 of the public authorities law is amended by adding a new subdivision 35 to read as follows:

35. "Stormwater" or "storm water" shall mean a flow of water occurring on the ground or other surface from rain or meltwater that is not absorbed by the soil or other surface.

§ 27. This act shall take effect immediately.